

A MEASURE

PASSED BY

THE NATIONAL ASSEMBLY OF THE
CHURCH OF ENGLAND

To provide for the Division of the Diocese of Southwell, the Foundation of a Bishopric of Derby, for the transfer of certain patronages to the Bishop of Southwell, and for purposes connected therewith.

[14th July 1924.]

1. This Measure may be cited as "The Diocese of Southwell (Division) Measure, 1923." Short title.

2. The Ecclesiastical Commissioners shall receive all contributions which may be made by the public for the purposes of the endowment of a bishopric of Derby, and carry the amount of such contributions to a fund to be called the "Derby Bishopric Endowment Fund." Such contributions may include any gift or bequest of real and personal property not exceeding the limits prescribed by this Measure for the endowment of the bishopric, and the powers of the donors to bestow and of the Ecclesiastical Commissioners to receive such gifts shall be the same as those enacted in the Acts of the second and third years of the reign of Queen Anne, chapter eleven, and of the Act of the forty-third year of the reign of King George the Third, chapter one hundred and seven, enabling donors to vest gifts in the Governors of Queen Anne's Bounty for the augmentation of the maintenance of the poor clergy for the benefit of ministers officiating in churches and chapels. Public contributions to endowment fund.

3. Whenever the Ecclesiastical Commissioners certify to His Majesty under their common seal either— Establishment of bishopric on provision of sufficient endowment.

(a) that the annual value of the Derby bishopric endowment fund (when calculated in manner in this Measure mentioned) is not less than three thousand pounds a year; or

- (b) that the annual value of such endowment fund, calculated as aforesaid, is not less than two thousand five hundred pounds a year, and that contributions to the fund sufficient to raise the same, within five years from the date of the certificate, up to three thousand pounds a year have been guaranteed to the satisfaction of the Commissioners;

and that in addition to the sum sufficient to produce the annual income aforesaid there has been provided a fitting episcopal residence for the Bishop of Derby, or there is in the fund a capital sum sufficient for the purchase or provision of such a residence, His Majesty, by Order in Council, may found the bishopric of Derby, with a diocese and cathedral church, in accordance with the provisions of this Measure, and may declare the time at which the Order is to come into operation.

His Majesty may, by Order in Council, constitute the Bishop of Derby a body corporate, and invest the bishop with all such rights, privileges and jurisdictions as are now possessed by any other bishop in England, or such of them as to His Majesty may seem meet.

In calculating the annual value of the Derby Bishopric Endowment Fund for the purposes of this Measure, there shall be included—

- (1) The net annual income of the part of the fund actually invested, and such sum as the Commissioners think will be the net annual income of the part of the fund not actually invested at the date of the certificate; and
- (2) When any contribution to the fund consists of an annual sum payable during life or other limited period, the whole of that sum, if in the opinion of the Commissioners the like annual sum will, at the termination of such life or other period, become payable as part of the fund.

4. The Bishop of Derby shall be subject to the metropolitan jurisdiction of the Archbishop of Canterbury.

5. The parish church of All Saints, Derby, subject to the rights of the patron and incumbent of that church, shall be the cathedral church of Derby.

Bishop to be
subject to
metropolitan
jurisdiction.

Cathedral
church.

6. The diocese of Derby when constituted shall consist of the present archdeaconries of Derby and Chesterfield, now in the diocese of Southwell. Diocese.

7. The number of Lords Spiritual sitting and voting as Lords of Parliament shall not be increased by the foundation of the bishopric of Derby; and whenever there is a vacancy among such Lords Spiritual by the avoidance of any of the sees of Canterbury, York, London, Durham, or Winchester, such vacancy shall be supplied by the issue of a writ of summons to the bishop acceding to the see so avoided; and if such vacancy is caused by the avoidance of any see other than one of the five sees aforesaid, such vacancy shall be supplied by the issue of a writ of summons to that bishop of a see in England who, having been longest bishop of a see in England has not previously become entitled to such writ : Number of bishops in Parliament not to be increased.

Provided that where a bishop is translated from one see to another, and was at the date of his translation actually sitting as a Lord of Parliament, he shall not thereupon lose his right to receive a writ of summons to Parliament.

8.—(1) So long as there is not a dean and chapter of a new bishopric founded in pursuance of this Measure— Appoint-ment of bishop of new bishopric.

- (i) the archdeacons of Derby and Chesterfield and the honorary and non-residentiary canons in the cathedral church of Southwell holding benefices within the area of the diocese of Derby shall be and shall be styled the Provisional Chapter of the said diocese;
- (ii) the senior of the two archdeacons aforesaid shall be and shall be styled the President of the Provisional Chapter of the diocese of Derby;
- (iii) upon the foundation of the diocese of Derby, and upon any subsequent avoidance of the bishopric, His Majesty may grant to the Provisional Chapter thereof a licence under the Great Seal to proceed to the election of a bishop with a letter-missive as provided by the statute of the twenty-fifth year of the reign of King Henry the Eighth, and all such further proceedings shall be had as if the said Provisional Chapter were the dean and chapter pertaining to a bishopric in England founded before the passing of the Bishoprics Act, 1878 :

Provided that if honorary canonries are founded in the cathedral church of the new bishopric of Derby, the holders of such honorary canonries shall together with and under the presidency of the senior archdeacon mentioned in this section constitute the Provisional Chapter in lieu of the non-residentiary and honorary canons in the cathedral church of Southwell.

(2) From and after the foundation of such dean and chapter a vacancy in that bishopric shall be filled in the same manner as a vacancy in any other bishopric in England founded before the passing of the Bishopric of St. Albans Act, 1875.

Scheme of Ecclesiastical Commissioners approved by Order in Council as to incidental arrangements for constituting diocese of Derby.

9. Whenever such certificate as is in this Measure mentioned has been given by the Ecclesiastical Commissioners with respect to the Derby Bishopric Endowment Fund, the Commissioners shall lay before His Majesty in Council for confirmation a scheme for all or any of the following matters (that is to say):—

- (1) For assigning to the bishop of Derby all or any such courts, offices and jurisdiction belonging to any bishop in England as it may be thought expedient to assign, and for dispensing with the confirmation, or other agency of a dean and chapter in relation to any matters in which such confirmation or agency would otherwise be required, and for the custody of the spiritualities during a vacancy in the see by the Archbishop of Canterbury; and
- (2) For making such arrangements as may be thought expedient by the creation and endowment of new archdeaconries or otherwise for the archidiaconal supervision of the parishes affected by the foundation of the bishopric, and for transferring any archidiaconal dignity from the cathedral church of Southwell to the cathedral church of Derby; and
- (3) For transferring (subject to any right enjoyed by any person at the passing of this Measure) to the bishop of Derby the patronage of all or some of the ecclesiastical dignities and benefices situate in the diocese of Derby, the patronage of which is immediately before the foundation of the bishopric vested in the bishop of Southwell; and

- (4) For enabling any archdeacon whose archdeaconry is affected by the foundation of the bishopric to reside in any place in which he is residing at the date of the scheme, and for making such arrangements as may seem to the Ecclesiastical Commissioners requisite to preclude any officer holding office at the passing of this Measure from being prejudiced by this Measure or any Order in Council or scheme thereunder; and
- (5) For founding honorary canonries in the cathedral church of Derby, with power to dispense with the consent of any dean and chapter so long as there is no dean and chapter in existence for the bishopric, and to provide for the transfer to the cathedral church of Derby of such non-residentiary or honorary canons in the cathedral church of Southwell as on the foundation of the bishopric hold benefices in the diocese of Derby, and consent to the transfer; and
- (6) For providing for the transfer, so soon as possible, to the registrar, or other officer of the diocese of Derby, from the bishop's registrar or diocesan officer in possession of the same, of all terriers, tithe apportionments, maps, plans and other documents relating to the several ecclesiastical parishes situate in the diocese of Derby; and
- (7) For the rearrangement of the boundaries of the dioceses of Derby and Southwell and of any diocese contiguous to either of them, and in relation to such rearrangement for providing, in reference to archdeaconries and archdeacons, for patronage, for the transfer of non-residentiary or honorary canons, for the transfer of terriers, tithe apportionments, maps, plans and other documents, and for such other arrangements and matters, so nearly as circumstances admit, as are authorised in relation to the bishoprics of Derby and Southwell in reference to each other; and
- (8) For making provision, if the Commissioners deem it advisable, whereby the annual income provided under this Measure for the Bishop of Derby may be divided into two portions, namely, a personal stipend and a fund for official expenses; and

- (9) For making such other provisions and arrangements, whether similar or not to the foregoing, as may be necessary for carrying into complete effect the foundation of the bishopric and the scheme.

Trusts of
Bishopric
Endowment
Fund.

10.—(1) The Derby Bishopric Endowment Fund shall be held by the Ecclesiastical Commissioners upon the trusts following (that is to say) :—

Upon trust to provide a net annual income not exceeding three thousand pounds a year and a fitting residence for the bishop of Derby, and subject as aforesaid upon trust for the foundation of a dean and chapter for the bishopric in such manner as may from time to time be provided by Order in Council.

(2) The annual income arising from the fund shall, until the bishopric is founded as provided by this Measure, be paid, up to a yearly sum of one thousand pounds, to the bishop of the suffragan see of Derby at present in the diocese of Southwell, but, save as aforesaid, shall be invested and accumulated as part of the fund; but the Commissioners shall have full power to sell (discharged from all trusts), invest, manage, lease and otherwise deal with the fund and the property on which it may for the time being be invested in such manner as they may deem most expedient for the purposes of their trust.

(3) The Commissioners may invest the whole or any part of the fund in the purchase of land, and may hold such land without any licence in mortmain, and may from time to time, but after the appointment of the bishop, with the consent of the bishop of Derby for the time being, assign to the bishop and his successors as an endowment for the bishopric the lands so purchased, if convenient, to be held by the bishopric :

Provided that there shall not be assigned as an endowment to the bishopric, exclusive of an episcopal residence, a greater extent of land than will, after deducting the costs of management, produce as nearly as may be a net annual income of three thousand pounds.

(4) The endowment of the bishopric under this Measure shall, subject to the provisions of this Measure, be deemed to be for all purposes subject to the same laws as the temporalities and endowment of any other bishopric in England.

11.—(1) It shall be lawful for His Majesty in Council to confirm a scheme laid before His Majesty in pursuance of this Measure, and a scheme made in pursuance of this Measure shall be of no effect until it has been so confirmed.

Confirmation of scheme and validity and publication of Orders in Council.

(2) An Order in Council made in pursuance of this Measure shall have effect as if it were enacted in this Measure.

(3) An Order in Council made in pursuance of this Measure shall be published in the "London Gazette," and shall as soon as practicable after the making thereof be laid before both Houses of Parliament.

12. The service of any person, either before or partly before, and partly after the foundation of the bishopric of Derby, or before or partly before and partly after a transfer is made under this Measure of an ecclesiastical parish from one diocese to another diocese as incumbent or curate in any ecclesiastical parish which, in pursuance of this Measure, is constituted part of a different diocese from that of which it formed part prior to such foundation or transfer, shall, for the purpose of qualifying such incumbent or curate to be presented or nominated to any benefice in the patronage of the chapter of any cathedral or collegiate church, be deemed to be service in the diocese in which such parish is situate at the time of the foundation or transfer, or in the diocese in which such parish is situate at the date of the presentation or nomination.

Saving as to service as incumbent or curate in transferred parishes.

13.—(1) As from the passing of this Measure the patronage of all benefices formerly in the patronage of the prebendaries of the collegiate church of Southwell, and the patronage of all benefices with cure of souls formerly possessed by the chapter of the said collegiate church which were respectively transferred to and are still vested in the Bishops of Ripon and Manchester by virtue of section forty-one of the Ecclesiastical Commissioners Act, 1840, and section twelve of the Ecclesiastical Commissioners Act, 1841, shall be transferred from the bishop of Ripon and the bishop of Manchester and be vested in the bishop of Southwell in like manner and subject to the same conditions as they were held and exercised by the bishops of Ripon and Manchester immediately before the passing of this Measure.

Transfer of certain patronage from bishops of Ripon and Manchester.

(2) The enactments specified in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Interpreta-
tion.

14.—(1) In this Measure the expression “ecclesiastical parish” means a parish, new parish, ecclesiastical district, or place, within the limits of which any parson has the exclusive cure of souls.

(2) The expression “England” in this Measure does not include any part of the Province of Wales.

(3) The Interpretation Act, 1889, shall apply to the interpretation of this Measure in like manner as it applies to an Act of Parliament, and as if this Measure were an Act of Parliament.

SCHEDULE.

Session and Chapter.	Short title.	Extent of Repeal.
3 & 4 Vict. c. 113	The Ecclesiastical Commissioners Act, 1840.	In section forty-one the words " that " with respect to benefices in the " patronage of the prebendaries of " the collegiate church of South- " well, the same shall so soon as " conveniently may be and by the " authority hereinafter provided " be transferred so as to become " vested as the prebends fall in " respectively, partly in the Bishop " of Ripon, and partly in the " Bishop of Manchester in such " proportion as shall be determined " on; and that upon the vacancy " of any such last-mentioned bene- " fice before the patronage thereof " shall have been so transferred " as aforesaid it shall be lawful for " the Bishop of Ripon for the time " being to present thereto."
4 & 5 Vict c. 39.	The Ecclesiastical Commissioners Act, 1841.	In section twelve the words " and the " patronage of all benefices with " cure of souls possessed by the " said chapter shall be transferred " to and vested partly in the " Bishop of Ripon and partly in " the Bishop of Manchester sub- " ject to the same provisions as " are in the said second recited " Act contained with respect to " benefices in the patronage of the " prebendaries of the said collegiate " church."

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